



Justification for Exception to Fair Opportunity, Exceeding the Simplified Acquisition Threshold, Data Strategy Support Services 2 (DSSS 2)

REFERENCE: Justification Log Number: FY25-0044 and PR Number: OPQ250009

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Citizenship and Immigration Services (USCIS), Office of Contracting, proposes to modify an existing task order on behalf of Office of Performance and Quality (OPQ) & Office of Chief Data Officer (OCDO) Mission, pursuant to Federal Acquisition Regulation (FAR) 16.505(b)(2), Exceptions to the fair opportunity process.

2. Nature and/or description of the action being approved.

The proposed action is for a sole source extension to task order 70SBUR22F00000186 with Anika Systems Inc. (Anika), 161 Fort Evans Road NE, Suite 250, Leesburg, VA, 20176, issued under OASIS 8(a) Pool 1.

3. Description of Supplies/Services.

Professional and technical support services to include business operations and data analysis; database and application development; dashboard and data visualization development, training program and syllabus development and publication; development of machine learning and artificial intelligence; graph data querying and analytical support; establishment of data quality assessments and corrections; intelligent automation tools and requirements development; communications; data governance and standards.

The extension will be Firm Fixed Price (FFP) for a base period of one (1) month with one (1) 1-month option period.

Base Period (3/24/2025 – 4/23/2025)	\$	
Option Period 1 (4/24/2025 – 5/23/2025)	\$	
2-MONTH TOTAL	\$	

4. Statutory exception and supporting rationale.

The applicable statutory FAR citation and basis for using an exception to fair opportunity process is FAR 16.505(b)(2)(i)(B), “Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Rationale:

Currently, Anika performs the required services under the DSSS 2 task order through 3/23/2025. On 12/18/2024, the competitive recompete of DSSS 2, DSSS 3 task order 70SBUR25F00000013 was awarded to AMAZE TECHNOLOGIES LLC. off their GSA OASIS 8(a) Small Business Pool 1, contract 47QRAD20D8102. Performance was scheduled to begin 12/18/2024. Between 12/20/2024 and 1/4/2025, USCIS received one Government Accountability Office (GAO) protest and one supplemental protest. On 1/6/2025, a stop work order was issued to AMAZE TECHNOLOGIES LLC.

The same services that are currently being performed by Anika are needed to continue until the protest is resolved. The nature of the requirement is complex and requires large-scale coordination and mobilization of project teams. There is a significant learning curve associated with commencing support of these projects due to the complexity of both immigration operations and USCIS system data. The time between the receipt of the protests and the end of the DSSS 2 current period performance eliminates the possibility of a competitive short-term award action. The need date for services would not allow sufficient time for recruiting, hiring, background checks and entry-on-duty, and most importantly, a transition period with knowledge transfer. The inability to continue performance would result in failure to deliver on several key USCIS priorities. USCIS Streamline Case Processing is a Director’s Priority effort that would be halted; multiple enterprise dashboards, viewed daily by the Director’s Office, would not be maintained; two pre-planned analyst training cohorts would be canceled; and a wealth of data governance activities would be halted. Only Anika is currently capable of providing required staffing at the level required within this short timeline with all necessary personnel in place. Only Anika provides the required extensive program knowledge necessary to continue operations in order to continue tasks and to allow for transition of ongoing activities pending the resolution of the protest. Up to 2-months of continued performance under the current task order may be needed. The 1-month base period will allow for sufficient time for the protest decision, which is due in April, and then a new award will need to be made. There may be a need for transition as well as the potential for another protest of the new award, which the one optional month would be used for.

Without continued contractor support, OPQ and OCDO will lose contractor support for its core mission of providing USCIS immigration statistics and operational data accessibility. Critical USCIS efforts like Streamline Case Processing and USCIS Statistical Visualization Tools must continue support operations on a 24/7 timeline. USCIS Leadership requires precise data driven analysis and insight derived from immigration and operational data to develop the policies and procedures to guide the operations of the Agency directorates, program offices, and the USCIS Front Office. This is a top priority for the Director’s Office. If this program were to be interrupted, the entire immigration backlog (which has been reduced over the years thanks to this critical effort), would resume growing at unprecedented rate due to current strains on the immigration system. For our USCIS Dashboards/Visualization tools, USCIS leadership and decision makers count on real time

stat breakdowns and visuals to stay informed on changing trends in data. To suspend the Director's dashboard if this contract was not supported, would cripple USCIS decision making processes and put extra burden on all USCIS operational offices to generate antiquated static manual reports.

Market research that was conducted for the competitive recompete recently awarded indicated that there are contractors capable of performing services required by DSSS 2 under the GSA OASIS 8(a) Small Business Pool 1. However, it has been concluded that only Anika has the specific skills, knowledge and experience needed to provide the required services at the level of quality required.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer determines that the anticipated prices will be fair and reasonable based on an evaluation for reasonableness utilizing one (1) or more analysis techniques identified in FAR Subpart 15.404-1. Since certified cost or pricing data is not required based on the exception at FAR 15.403-1(b)(3), the Contracting Officer may request other than certified cost and pricing data if determined to be necessary in the assessment of fair and reasonable pricing.

6. Any other facts supporting the justification.

There are no additional facts supporting this justification.

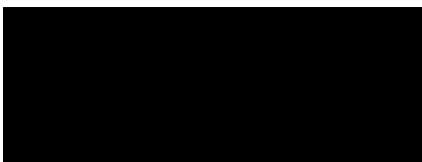
7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

Any barriers to competition will be removed upon resolution of the GAO protest. No other competitive barriers are known at this time, which would lead to a future justification. This extension is only intended to continue the current services until the protest of the DSSS 2 recompetes is resolved, which was a competitive procurement.

8. USCIS intends to post this requirement on Sam.gov pursuant to FAR 16.505(b)(2)(ii)(D).

9. Technical/Requirements Personnel Certification.

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.



USCIS Chief Data Officer

Date

10. Contracting Officer Certification

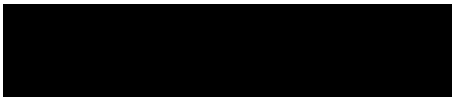
Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that this justification is accurate and complete to the best of my knowledge and belief.



Kenneth Acquaviva
Contracting Officer

Date

APPROVAL: Pursuant to FAR 16.505(b)(2)(ii)(B)(10), I hereby determine the circumstance identified in Section 4 applies to the order.



Daniel Knapp
Procuring Activity Advocate for Competition

Date